

INDEPENDENT SALES REPRESENTATIVE AGREEMENT

(1099 Independent Contractor — Roofing Sales)

DRAFT FOR REVIEW — NOT YET EXECUTED. This document is a working draft prepared at the direction of Daniel P. Bivins (Collaborative Concept LLC). It is **not legal advice**. Items marked in **[brackets]** must be confirmed before signing, and the parties should have this reviewed by a Florida-licensed attorney before execution.

This Independent Sales Representative Agreement (the "**Agreement**") is entered into as of **June 30, 2026** (the "**Effective Date**"), by and between:

- **SeaBreeze Roofing & Solar**, a Florida licensed roofing and solar contractor (FL Roofing License CCC1328689; FL Solar License CVC57073), with a principal place of business at **2600 High Ridge Rd, Boynton Beach, FL 33426** ("**Company**"); and
- **Collaborative Concept LLC**, a Florida limited liability company, acting by and through **Daniel P. Bivins**, with a principal place of business at **513 W Drew St, Lantana, FL 33462**, email dannybivins83@gmail.com, phone (561) 475-8615 ("**Representative**" or "**Rep**").

Company and Representative are each a "**Party**" and together the "**Parties**."

1. Engagement & Independent Contractor Status

1.1 Engagement. Company engages Representative as a non-exclusive independent sales representative to solicit and originate roofing sales (including re-roofing and roofing service/repair work) on Company's behalf, and Representative accepts that engagement, subject to the terms of this Agreement.

1.2 1099 Independent Contractor. Representative is an **independent contractor**, not an employee, partner, agent for any purpose beyond sales solicitation, or joint venturer of Company. Nothing in this Agreement creates an employment relationship. The Company-Provided Items furnished under Section 1.6 (vehicle, Gas Card, Company Card, and cell phone) are a negotiated business accommodation and tool of trade that do not convert Representative into an employee; Representative still controls the manner, method, and hours of his work (Section 1.4), bears his own income and self-employment taxes (Section 1.3), and is not entitled to employee benefits.

1.3 Taxes & Benefits. Company will report Representative's compensation on **IRS Form 1099**. Company will **not** withhold income, Social Security, Medicare, or other taxes. Representative is solely responsible for all self-employment and income taxes on compensation paid under this Agreement and is **not** entitled to employee benefits (health insurance, paid time off, workers' compensation, unemployment, retirement, etc.). Representative shall furnish a completed **IRS Form W-9** before the first commission is paid. The Company-Provided Items under Section 1.6 are provided for business use and are **not** employee benefits; any value

attributable to permitted personal use may be includible in Representative's income and reportable as required by law, and Representative remains solely responsible for any resulting tax (Company has no withholding obligation on such in-kind items).

1.4 Control of Work. Representative controls the manner, method, means, schedule, and hours of his own sales activity and is not subject to Company's direction or control as to the details or means by which that activity is performed. Except for the Company-Provided Items that Company elects to furnish under Section 1.6 (a company vehicle, Gas Card, Company Card, and cell phone), Representative furnishes his own basic sales tools and pays his own routine business expenses — including all Rep-Funded Marketing under Section 5.5 — except as the Parties agree in writing or as otherwise provided in Section 1.6. The Parties acknowledge that Company's provision of the Company-Provided Items is for Company's business convenience and does not convert Representative into an employee; Representative retains control over the manner, method, and hours of his sales activity.

1.5 Authority. Representative may solicit and present offers but has **no authority** to bind Company, set final pricing, sign contracts, approve scopes, or make warranty commitments unless expressly authorized in writing by Company. All customer contracts are between the customer and Company.

1.6 Company-Provided Vehicle, Fuel, Company Card & Cell Phone. As an administrative convenience and tool of trade to support Representative's sales activity, Company will provide to Representative, at Company's expense and for use in performing under this Agreement, the following (collectively, the "**Company-Provided Items**"): (a) a company vehicle owned or leased by Company; (b) fuel for the vehicle by means of a company-issued gas card (the "**Gas Card**"); (c) a company-issued payment card for approved business expenses (the "**Company Card**"); and (d) a cell phone with service. The Company-Provided Items are furnished for Company's business convenience and are **not** employee benefits within the meaning of Section 1.3.

1.6.1 Business use; costs borne by Company. The Company-Provided Items are furnished for business use in connection with this Agreement. Company will pay the ordinary costs of keeping the vehicle and other items in service — including registration, routine maintenance, fuel charged to the Gas Card, the cell-phone service charges, and the automobile insurance described in 1.6.2 — except as otherwise stated in this Section.

1.6.2 Insurance; valid license; authorized driver. Company shall carry **commercial automobile liability and physical-damage insurance** on the company vehicle with limits of at least **[\$1,000,000 combined single limit – confirm]**. Representative shall be a **listed and authorized driver** under Company's commercial auto policy, shall at all times hold a **valid Florida driver's license in good standing**, and shall not permit any other person to operate the vehicle. Representative shall promptly notify Company of any suspension, revocation, or restriction of his license, of any lapse in coverage, and of any accident involving the vehicle. License suspension or loss of authorized-driver status is grounds for immediate suspension of vehicle use.

1.6.3 Personal use. Personal use of the company vehicle is not permitted — the vehicle is for Company business use only. Reasonable, incidental personal use of the cell phone is permitted. The **Company Card and Gas Card are for approved Company business expenses only** and may not be used for personal purchases. To the extent any personal use of a Company-Provided Item results in taxable value to

Representative, that value will be reported and borne by Representative as provided in Section 1.3, and Representative shall maintain and furnish a contemporaneous mileage/use log on request.

1.6.4 Representative responsibility. Representative is responsible for, and shall promptly pay or reimburse Company for, all parking tickets, traffic citations, red-light and toll-camera violations, tolls, fines, towing/impound charges, and similar amounts incurred by Representative, and for any loss, damage, or expense arising from Representative's misuse of the vehicle, the Company Card, the Gas Card, or any other Company-Provided Item (including unauthorized, personal, or non-business charges). Company may pay any such amount and recover it from Representative; any offset against amounts otherwise payable to Representative is governed by, and limited by, **Section 8.6 — which protects Representative's earned and trailing commissions under Section 8.4** — and Company's remedy for amounts it cannot lawfully offset is recovery of the amount owed (including by an action for the property or the debt).

1.6.5 Company property; return on termination. All Company-Provided Items — including the vehicle, keys and access devices, Gas Card, Company Card, cell phone, SIM, and any related equipment or accessories — remain the **sole property of Company** at all times, and Representative acquires no ownership interest in them. Representative shall return all Company-Provided Items as provided in Section 8.6 (Return of Company Property), which applies on termination or expiration for any reason or earlier upon Company's written request.

1.6.6 No change to independent-contractor status. Company's provision of the Company-Provided Items is an administrative convenience and tool of trade and is **not** intended to, and does not, convert Representative into an employee or otherwise alter the independent-contractor relationship described in Sections 1.2 through 1.4. Representative continues to control the manner, method, means, schedule, and hours of his own sales work, bears his own self-employment and income taxes, and receives no employee benefits. Representative shall indemnify Company for any taxes, penalties, or assessments arising from a reclassification of Representative as an employee; **this indemnity survives termination.** *(Attorney note: furnishing a vehicle, fuel, payment card, and phone are factors weighed in IRS/Florida worker classification; confirm consistency with 1099 treatment.)*

2. Duties of Representative

2.1 Solicit, develop, and close roofing sales (re-roofs and roofing service work) for Company.

2.2 Present Company's products, pricing, and terms accurately and not make false or unauthorized representations or warranties.

2.3 Submit all signed customer agreements, deposits, and job documentation to Company promptly and through Company's designated process so that each sale can be properly credited to Representative.

2.4 Conduct himself lawfully and professionally, and comply with all applicable licensing, permitting, and consumer-protection laws relating to roofing sales in Florida.

3. Commission — Compensation

3.1 Commission Schedule

Sale type	Commission rate	How it is paid
Re-roofing sales (all re-roofs, all volume)	7% (<i>flat, across the board</i>)	split 50/50 — see 3.5
Service / repair sales (all non-re-roof roofing service work)	10% (<i>flat, across the board</i>)	in full on final payment — see 3.5

3.2 Re-roof sales. All re-roofing sales originated by Representative are commissioned at a **flat 7%**, across the board, with no volume tier and no rate change over time.

3.3 Service sales. All roofing service and repair sales (non-re-roof) are commissioned at a **flat 10%**, across the board.

3.4 Wood bills & material ordering. On re-roof jobs, replacement of rotten/damaged wood decking ("wood bills") is **not** an upfront line item — it is discovered and billed **during the job**, which raises the job's **final** contract total. Because the front-end commission is calculated on the original contract price (before the wood is known) and the back-end commission is calculated on the **final total** (which includes the wood), Representative is automatically paid commission on the wood through the back-end calculation in Section 3.5 — i.e., the wood earns the **back-end 3.5%**. Representative **handles the wood bills and material ordering** for re-roof jobs.

3.5 Re-roof payment timing — 50/50 (front end / back end). Each re-roof commission (7% total) is paid in two equal halves:

- **Front-end half = 3.5%**, calculated on the **original contract price**, paid upon Company's **collection of the customer's initial deposit**.
- **Back-end half = 3.5%**, calculated on the **final total project amount** (the final contract price **including** any wood bills / decking upcharges added during the job), paid **once the job's final payment is collected in full** ("done done").

Net effect: Representative earns the full **7% on the base contract price**, plus an additional **3.5% on any wood/decking** added during the job (the wood only catches the back-end half because it arises after the deposit).

3.6 Service payment timing. Each service / repair commission (10%) is paid **in full upon Company's collection of the customer's final payment** on the job.

3.7 Commission basis. Commission is calculated on the **gross contract amount** (original contract price for the front-end half; final total including wood for the back-end half), **excluding** only sales tax and any third-party financing fees passed through to the customer. Commission is **not** reduced by Company's job costs, materials, labor, overhead, or profit margin.

3.8 Pay day — every Friday by 4:00 PM. All commission amounts that have become payable during a given week (re-roof front-end halves on jobs whose deposit was collected, re-roof back-end halves on jobs

paid in full, and service commissions on jobs paid in full) are disbursed **every Friday by 4:00 PM, beginning the first Friday on or after the Effective Date (Friday, July 3, 2026)**, by check or direct deposit, accompanied by a statement showing the jobs and amounts paid.

3.9 **No draw / advance** is provided unless agreed in a separate written addendum signed by both Parties.

4. Credit, Chargebacks & Cancellations

4.1 **Credit for a sale.** A sale is credited to Representative when he is the originating/closing rep on a customer contract submitted through Company's process and the customer's deposit is collected.

4.2 **Cancellations / refunds.** If a customer cancels, rescinds (including any statutory right-to-cancel period), or a contract is voided before Company collects payment, no commission is earned on the cancelled amount. If a commission installment was already paid on amounts later refunded to the customer, Representative will repay that portion, or Company may offset it against future commissions ("**chargeback**").

4.3 **No chargeback for Company's choices.** No chargeback applies to losses caused solely by Company's own decision to discount, write off, or not pursue collection of a validly closed job, except where the customer is genuinely unable to pay.

5. Leads & Lead Ownership

Reflects the intent that Representative is treated fairly and his own pipeline is protected.

5.1 **Company-provided leads.** Leads, advertising responses, and marketing inquiries generated by or paid for by Company ("**Company Leads**") remain Company's property. Commissions on closed Company Leads are paid to Representative at the rates in Section 3. "Paid for by Company" means leads from marketing or advertising funded by Company's own budget; it **excludes** Rep-Funded Marketing that Representative pays for with his own funds (which are Rep Leads under Sections 5.2 and 5.5), even where Representative also uses a Company-Provided Item. The Company Card and Gas Card shall not be used for Representative's personal lead-generation marketing.

5.2 **Rep-generated leads.** Leads and customers that Representative personally sources and develops ("**Rep Leads**") will be **credited to Representative** for commission purposes, and Company will not reassign a Rep Lead to another representative to avoid paying Representative the commission he earned on it. Rep Leads include leads generated through Rep-Funded Marketing under Section 5.5 (marketing Representative pays for with his own funds), regardless of Representative's use of any Company-Provided Item in working them, and Company shall not treat such Rep-funded leads as Company Leads.

5.3 **No diversion ("won't steal ads").** Representative shall **not** divert, redirect, or convert Company's advertising, marketing, or Company Leads to himself, to any competitor, or to any business other than Company during the Term. Company likewise shall not strip Representative of credit for sales he has properly originated and submitted.

5.4 **Good-faith dealing.** Company will administer lead assignment and commission crediting in good faith and will not act to deprive Representative of commissions he has fairly earned.

5.5 **Representative-Funded Marketing for Self-Generated Leads.** Representative may, at his **own expense** and in his discretion, conduct marketing and advertising to generate his own leads. Leads and customers so generated are **Rep Leads** credited to Representative under Section 5.2.

5.5.1 **Rep's own cost; no reimbursement.** All costs of Representative's self-funded marketing and advertising ("**Rep-Funded Marketing**") are borne **solely by Representative** and are **not** reimbursed by Company unless Company agrees in advance and in writing to reimburse a specific expense. Rep-Funded Marketing must be paid with Representative's own funds and **not** with the Company Card or Gas Card. Leads generated through Rep-Funded Marketing are **Rep Leads** credited to Representative under Section 5.2 and are **not** Company Leads under Section 5.1, regardless of Representative's use of any Company-Provided Item in working them. Company shall not reclassify a Rep Lead as a Company Lead except by a writing signed by both Parties.

5.5.2 **Lawful marketing; no misuse of Company licenses or branding.** Representative's marketing must be lawful, truthful, and not misleading, and must comply with all applicable advertising, licensing, and consumer-protection laws (including Florida contractor- advertising and FDUTPA requirements). Representative shall **not** use Company's name, logos, trademarks, contractor or solar **license numbers** (CCC1328689 / CVC57073), certifications, or other branding, and shall not hold himself out as the licensed contractor, without Company's **prior written permission**; any permitted use shall conform to Company's reasonable branding and licensing requirements. Representative shall indemnify Company for advertising, licensing, or consumer claims arising from his Rep-Funded Marketing.

5.5.3 **Rep Leads survive termination.** Consistent with Section 8.4 (Trailing commissions), Rep Leads remain credited to Representative, and Representative remains entitled to commissions on jobs he originated from Rep Leads and submitted before the termination date, even after this Agreement ends, paid at the Section 3 rates and on the Section 3.5 schedule as Company collects payment.

6. Non-Compete & Non-Solicitation

6.1 **During the engagement only.** The restrictions in this Section apply **only while this Agreement is in effect (during the Term)** and **end upon termination** — there is **no post-termination non-compete**.

6.2 **During the Term,** Representative shall not, directly or indirectly, sell or solicit roofing or solar work in competition with Company, nor divert Company customers, Company Leads, or Company advertising responses to any competitor or to any business other than Company. ("*Won't steal ads.*")

6.3 **No solicitation of personnel (during the Term).** While this Agreement is in effect, neither Party shall solicit the other's employees or contractors to leave.

6.4 **After termination.** After this Agreement ends, Representative is free to compete and to sell roofing/solar for any business, subject only to the surviving confidentiality obligation in Section 7 (Representative may not use Company's confidential customer lists or trade secrets).

7. Confidentiality

Representative shall keep confidential, during and after the Term, Company's customer lists, pricing, lead sources, advertising data, vendor terms, and other non-public business information, and shall use it solely to perform under this Agreement.

8. Term & Termination

8.1 Term. This Agreement begins on the Effective Date and continues until terminated under this Section ("Term").

8.2 Termination for convenience. Either Party may terminate on **[30]** days' written notice.

8.3 Termination for cause. Either Party may terminate immediately for a material breach not cured within **[10]** days of written notice, or immediately for fraud, theft, or a material violation of law.

8.4 Trailing commissions ("won't screw him over"). Upon termination for any reason **other than** Representative's fraud, theft, or willful misconduct, Representative remains entitled to commissions on **all jobs he originated and submitted before the termination date**, paid at the Section 3 rates and on the Section 3.5 schedule as Company collects payment — including the second (final) 50% installment on jobs already deposited, and commission on jobs already signed but not yet started. Company will pay these trailing commissions in the ordinary course as customer payments are collected.

8.5 Survival. Sections 3 (as to earned/trailing commissions), 4, 5.5.2 (no misuse of Company licenses/branding and related indemnity), 7, 8.4, 8.6 (return of Company property), 1.6.3–1.6.6 (personal-use tax responsibility, Representative responsibility, return of Company-Provided Items, and the worker-reclassification indemnity), and 9 survive termination. *(Section 6 does not survive — the non-compete ends at termination.)*

8.6 Return of Company Property. Upon termination or expiration of this Agreement for any reason, Representative shall promptly (and in any event within **five (5) days**) return to Company all **Company-Provided Items** and other Company property — including the company vehicle (with keys and all access devices), the cell phone and SIM, the Company Card, the Gas Card, login credentials, and any branded materials, customer lists, or leads — in good condition, ordinary wear and tear excepted, and shall **immediately cease all use** of the vehicle and cards. Company may deactivate the Company Card, Gas Card, cell phone/SIM, and system access at or after termination. Representative remains responsible for any charge on the Company Card or Gas Card that is not a legitimate Company business expense incurred before termination, and for the documented value (actually incurred) of any Company-Provided Item not returned or returned damaged beyond ordinary wear and tear. **Company shall not offset any such amount against Representative's earned or trailing commissions under Sections 3 and 8.4; the trailing-commission obligation in Section 8.4 is independent of, and not conditioned on, the return-of-property obligation.** Company may offset documented amounts only against other non-commission amounts (if any) then owed to Representative, or with Representative's separate written consent; for all other recovery — including the vehicle and other property — Company's remedy is an action for conversion, replevin, or recovery of the amounts owed.

9. General Provisions

9.1 **Governing law.** This Agreement is governed by the laws of the **State of Florida**, without regard to conflict-of-laws rules.

9.2 **Dispute resolution.** The Parties will first attempt to resolve any dispute in good faith. Any unresolved dispute shall be mediated and, if still unresolved, litigated in the state courts of **Palm Beach County, Florida** (where both Parties are located).

9.3 **Independent legal advice.** Each Party has had the opportunity to obtain independent legal advice before signing.

9.4 **Indemnification.** Representative shall indemnify Company against losses arising from Representative's unauthorized representations, misconduct, or violation of law; Company shall indemnify Representative against losses arising from Company's performance of the customer contracts and Company's own misconduct.

9.5 **Assignment.** Representative may not assign this Agreement without Company's prior written consent.

9.6 **Entire agreement.** This Agreement is the entire agreement between the Parties on its subject matter and supersedes all prior discussions. It may be amended only by a writing signed by both Parties.

9.7 **Severability.** If any provision is held unenforceable, the rest remains in effect, and a court may reduce any overbroad restriction (including in Section 6) to the extent needed to make it enforceable.

9.8 **Counterparts / e-signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

10. Signatures

COMPANY — SEABREEZE ROOFING & SOLAR

By: _____ Date: _____

Name: **[Signatory Name]**

Title: **[Owner / Authorized Officer]**

REPRESENTATIVE — COLLABORATIVE CONCEPT LLC

By: _____ Date: _____

Name: **Daniel P. Bivins**

Title: **[Managing Member / Owner]**

Exhibit A — IRS Form W-9

(Representative completes and attaches a current Form W-9 before first payment.)

Confirmed from records (Google Drive)

- **Company:** SeaBreeze Roofing & Solar — 2600 High Ridge Rd, Boynton Beach, FL 33426; FL Roofing License CCC1328689; FL Solar License CVC57073; seabreezeroof.com.
- **Representative:** Collaborative Concept LLC, by Daniel P. Bivins — dannybivins83@gmail.com; (561) 475-8615; collaborativeconceptsfl.com.

Status — key terms filled in

- Parties, addresses, licenses — **set**.
- Effective date **June 30, 2026**; pay every **Friday by 4:00 PM**, first payout **Fri July 3, 2026** — **set**.
- Commission on **gross contract** (not net/profit) — **set**.
- Non-compete applies **during the engagement only**, no post-termination restriction — **set**.
- Dispute venue: **Palm Beach County, FL** — **set**.
- **Company provides a vehicle, Gas Card, Company Card, and cell phone** (Company-Provided Items) at Company expense, returned on termination (§1.6, §8.6) — **set**.
- **Representative funds his own marketing** (Rep-Funded Marketing) for self-generated Rep Leads credited to him (§5.5) — **set**.
- Vehicle **personal use prohibited**; phone incidental personal use OK (§1.6.3) — **set**.

Open items to confirm before signing

- **SeaBreeze's authorized signer name & title** (Company signature block) — entered at signing.
- **Commercial auto insurance limit** (§1.6.2 — draft uses \$1,000,000 CSL) and that the policy lists Representative as an authorized non-employee driver.
- **Company Card / Gas Card** spending limit, approved categories, and receipt cadence.
- Term/notice periods in §8.2 (30 days), §8.3 (10-day cure), and the §8.6 return window (5 days) — reasonable defaults; adjust if desired.

Attorney review — items counsel should confirm

- **1099 classification:** a company-owned/insured vehicle + phone + cards are employee-leaning factors; the recitals (§1.2, §1.6.6), Rep's self-funded marketing (entrepreneurial risk), non-exclusivity, and the reclassification indemnity are drafted to support 1099 status — confirm sufficiency.
- **Florida dangerous-instrumentality doctrine:** as title owner, Company can be vicariously liable for Rep's at-fault accidents; consider robust insurance/additional-insured status or titling/leasing the vehicle to Representative.
- **Commission-deduction law:** §8.6 is drafted so unreturned-property/fine amounts are **not** offset against earned/trailing commissions (recovery via conversion/replevin instead) — confirm compliance.